

Manoj Kumar Dubey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 September 2022 · Writ-C No. 23935 of 2022 · WRIT - C No. 23935 of 2022 · **Writ disposed of. Petitioner to collect the provisional and final assessment orders from the Executive Engineer on 15 September 2022 and file a section 127 / clause 6.8 appeal within two weeks of receipt; appellate authority to decide on merits without a limitation objection, preferably within six weeks; recovery citation dated 10 August 2021 stayed for two months or until that decision, whichever is earlier.**

HEADNOTE

A consumer who has not been furnished the provisional and final assessment orders in a theft-of-electricity matter is not entitled to have the High Court examine the assessment on a writ petition. He is to be supplied those orders and relegated to an appeal under section 127 of the Electricity Act, 2003 read with clause 6.8 of the Electricity Supply Code, 2005. The appellate authority must decide the appeal on merits without raising limitation; recovery under the citation remains stayed for a short window pending that appeal.

FACTUAL SUMMARY

Manoj Kumar Dubey challenged a recovery citation dated 10 August 2021 issued by the distribution licensee in a theft-of-electricity matter. He pleaded that neither the provisional nor the final assessment order had been supplied, that he had not been given time to object to the provisional assessment, and that the checking report had not been given to him, leaving him unable to file a statutory appeal. Counsel for neither side could state the date of the final assessment order.

HOLDING-UNITS

INTERPLAY · EA2003::127

relegation to section 127 / clause 6.8 appeal after supply of assessment orders; stay of recovery

HOLDING

Where the consumer in a theft-of-electricity matter complains that the provisional and final assessment orders and the checking report were never supplied, so that a statutory appeal could not be filed, the writ court will not decide the assessment. The Executive Engineer shall furnish both assessment orders; the consumer shall then file an appeal under section 127 of the Electricity Act, 2003 read with clause 6.8 of the Electricity Supply Code, 2005 within two weeks of receipt; the appellate authority shall decide that appeal on merits without raising limitation, preferably within six weeks; and the recovery citation shall not be pressed for two months or until the appeal is decided, whichever is earlier, subject to the consumer appearing and filing the appeal as directed. ¶ 1

FLAG Order describes a theft-of-electricity matter but directs appeal under EA2003 s.127 read with UP-2005 cl. 6.8 (assessment/UUE appeal), without citing cl. 8.1–8.2.

PRINCIPLE TAGS

relegation-to-section-127-appeal-on-merits-limitation-not-examined The appellate authority was directed to decide the section 127 / clause 6.8 appeal on merits without raising any objection as to limitation. ¶ 1

recovery-of-assessment-stayed-pending-s127-appeal The recovery citation dated 10 August 2021 was directed not to be pressed for two months or until the appellate decision, whichever is earlier. ¶ 1

alternative-remedy-statutory-appeal-6.8 The writ was disposed of by directing supply of the assessment orders and relegating the petitioner to an appeal under section 127 read with clause 6.8. ¶ 1

alternative-remedy-relegation-section-127 The Court declined to examine the theft assessment on the writ and sent the consumer to the statutory section 127 appeal. ¶ 1

NOT DECIDED — WHETHER NON-SUPPLY OF THE CHECKING REPORT OR OF THE PROVISIONAL AND FINAL ASSESSMENT ORDERS VITIATES THE ASSESSMENT OR THE RECOVERY CITATION

The Court directed copies to be furnished and relegated the petitioner to a section 127 appeal rather than quashing the assessment. ¶ 1

NOT DECIDED — DATE OF THE FINAL ASSESSMENT ORDER AND THE MERITS OF THE THEFT ASSESSMENT

Neither side could state the date of the final assessment; merits left to the appellate authority. ¶ 1

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.